RESOLUTION NO. 2026-37

RESOLUTION OF THE CITY COUNCIL OF THE CITY OF EUREKA, CALIFORNIA, REQUESTING THE BOARD OF SUPERVISORS OF THE COUNTY OF HUMBOLDT TO PROVIDE ELECTION SERVICES AND TO CONSOLIDATE A GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026 WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THE DATE PURSUANT TO § 10403 OF THE ELECTIONS CODE.

WHEREAS, the City Council of the City of Eureka called a General Municipal Election to be held on Tuesday, November 3, 2026 for the purpose of the election of a two Members of the City Council; and

WHEREAS, it is desirable that the General Municipal Election be consolidated with the Statewide General Election to be held on the same date and that within the city precincts, polling places and election officers of the two elections be the same and that the election department of the County of Humboldt canvass the returns of the General Municipal Election and that the election be held in all respects as if there were only one election;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF EUREKA DOES HEREBY RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That pursuant to the requirements of §10403 of the Elections Code, the Board of Supervisors of the County of Humboldt is hereby requested to consent and agree to consolidation of a General Municipal Election with the Statewide General Election on Tuesday, November 3, 2026 for the purpose of the election of the following officers:

Mayor
Councilmember, First Ward
Councilmember, Third Ward
Councilmember, Fifth Ward

SECTION 2. That the county election department is authorized to canvass the returns of the General Municipal Election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used. The election will be held and conducted in accordance with the provisions of law regulating the statewide election.

SECTION 3. That the Board of Supervisors is requested to issue instructions to the county election department to take any and all steps necessary for the holding of the consolidated election.

SECTION 4. That the City of Eureka recognizes that additional costs will be incurred by the County by reason of this consolidation and agrees to reimburse the County for any costs.

SECTION 5. That the City Clerk is hereby directed to file a certified copy of this resolution with the Board of Supervisors and the Election Department of the County of Humboldt.

SECTION 6. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

PASSED, APPROVED AND ADOPTED by the City Council of the City of Eureka, County of Humboldt, State of California, on the 16th day of June 2026, by the following vote:

AYES: COUNCILMEMBERS CASTELLANO, MOULTON, FERNANDEZ, BAUER, CONTERAS-DELOACH
NOES: COUNCILMEMBERS
ABSENT: COUNCILMEMBERS

Kim Bergel
Mayor of the City of Eureka

ATTEST:

Pamela J. Powell
City Clerk

APPROVED AS TO FORM:

Robert Black
City Attorney

APPROVED AS TO ADMINISTRATION:

Miles Slattery
City Manager

RESOLUTION NO. 2026- 42

RESOLUTION OF THE CITY COUNCIL OF THE CITY OF EUREKA, CALIFORNIA, REQUESTING THE BOARD OF SUPERVISORS OF THE COUNTY OF HUMBOLDT TO PROVIDE ELECTION SERVICES AND TO CONSOLIDATE THE GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026 WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THAT DATE PURSUANT TO SECTION 10403 OF THE ELECTIONS CODE.

WHEREAS, the City Council of the City of Eureka called a General Municipal Election to be held on Tuesday, November 3, 2026 for the purpose of submitting to the voters a question relating to the City of Eureka Transient Occupancy Tax; and

WHEREAS, it is desirable that the General Municipal Election be consolidated with the Statewide General Election to be held on the same date and that within the city the precincts, polling places and election officers of the two elections be the same, and

WHEREAS, it is desirable that the Election Department of the County of Humboldt canvass the returns of the General Municipal Election and that the election be held in all respects as if there were only one election;

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF EUREKA DOES HEREBY RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

SECTION 1. That pursuant to the requirements of § 10403 of the Elections Code, the Board of Supervisors of the County of Humboldt is hereby requested to consent and agree to consolidation of a General Municipal Election with the Statewide General Election on Tuesday, November 3, 2026 that the following measure is to appear on the ballot as follows:

"To maintain police, fire, 911 emergency medical response, street repair and road safety, parks and recreation, community health and mental health services, local business and economic development, and other essential services impacted by tourism, shall an ordinance increasing the City of Eureka's existing hotel tax by 2%, paid only by guests of hotels and short-term vacation rentals, be adopted until ended by voters, providing approximately $700,000 annually, with independent financial audits and oversight by the City's Finance Advisory Committee?"	YES
	NO

SECTION 2. That the Board of Supervisors is requested to issue instructions to the Election Department of the County of Humboldt to take any and all steps necessary for the holding of the consolidated election. The election shall be held in all respects as if there were only one election, and only one form of ballot shall be used.

SECTION 3. That the Election Department of the County of Humboldt is authorized to canvass, or cause to be canvassed, the returns of the General Municipal Election on said elective offices, and to certify such canvass to the City Council.

SECTION 4. That the City of Eureka recognizes that additional costs will be incurred by the County by reason of this consolidation and agrees to reimburse the County for any costs.

SECTION 5. That the City Clerk is hereby directed to file a certified copy of this resolution with the Board of Supervisors and the Election Department of the County of Humboldt.

SECTION 6. That the City Clerk shall certify to the passage and adoption of this resolution and enter it into the book of original resolutions.

PASSED, APPROVED AND ADOPTED by the City Council of the City of Eureka, County of Humboldt, State of California, on the 7th day of July, 2026, by the following vote:

AYES: COUNCILMEMBERS CASTELLANO, MOULTON, BAUER
NOES: COUNCILMEMBERS FERNANDEZ, CONTRERAS-DELOACH
ABSENT: COUNCILMEMBERS

Kim Bergel
Mayor of The City Of Eureka

ATTEST:

Pamela J. Powell
City Clerk

APPROVED AS TO FORM:

Robert Black
City Attorney

APPROVED AS TO ADMINISTRATION:

Miles Slattery
City Manager

City Attorney's Impartial Analysis

Measure I

The following impartial analysis of the measure was prepared by the Eureka City Attorney:

If adopted by the voters of the City of Eureka, this ballot measure would increase Eureka's transient occupancy tax (TOT) by two percent (2%) of rent charged for stays of less than 30 days, up from ten percent (10%) currently, to a total of twelve percent (12%). These percentages are paid by the guests on top of the rent charged by the operator of an accommodation, including but not limited to hotels, motels, campgrounds, short-term vacation rentals, and similar facilities.

The additional 2% tax would take effect on January 1, 2027. This type of tax is authorized by State Law and is paid by "transients," defined in the Eureka Municipal Code as, "Any person who exercises occupancy or is entitled to occupancy by reason of concession, permit, right of access, license, or other agreement for a period of 30 consecutive calendar days or less, counting portions of calendar days as full days."

The TOT, including the proposed 2% increase, is a general-purpose tax, meaning that all revenue from this tax will be deposited into the City's General Fund. Accordingly, all revenues from this tax will be used by the City to maintain general City operations including police, fire, 911 emergency medical response, youth and senior services, business and economic development, street repair and road safety, community health and mental health services, homelessness prevention programs, parks and recreation, debt reduction, and other essential services impacted by tourism. Because this is a "general purpose tax," it requires a simple-majority vote to pass.

If approved by a majority of voters on November 3, 2026, the tax would take effect January 1, 2027, and would remain in effect until amended or terminated by a majority of Eureka voters.

The tax imposed by Measure I is estimated to generate approximately $700,000 per year, with independent auditing required by State Law and oversight by the City's Financial Advisory Committee.

A "yes" vote is a vote to enact a 2% increase in the City's Transient Occupancy Tax to take effect January 1, 2027.

A "no" vote is a vote against the enactment of a 2% increase in the City's Transient Occupancy Tax.

/s/ Robert N. Black
City Attorney
City of Eureka

Argument in Favor of Measure I

A **YES** vote on Measure I is a vote to support the quality of life in Eureka while ensuring that visitors help pay for the services they use.

Measure I increases the City's Transient Occupancy Tax (hotel tax) from 10% to 12%, bringing Eureka in line with County jurisdiction. This tax is paid by guests staying in hotels, motels, and short-term vacation rentals for fewer than 30 days, not by Eureka residents.

Every year, thousands of visitors come to our community to enjoy our parks, streets, public spaces, events, and public safety services. Tourism strengthens our local economy, but it also creates additional demands on police, fire, emergency medical response, roads, parks, and other City services. Measure I helps ensure that visitors contribute a fair share toward maintaining these essential services.

The measure is expected to generate approximately $700,000 annually to support general City services, including police, fire protection, 911 emergency medical response, street repair and road safety, parks and recreation, community health and mental health services, business and economic development, homelessness prevention programs, and other essential services that benefit residents and visitors alike.

Measure I also provides important accountability. State law requires independent financial audits, and the City's Finance Advisory Committee will provide ongoing oversight of the revenue generated by this measure.

Without additional revenue, the City will face increasing challenges in maintaining the high level of public services that residents expect and that visitors rely upon. By asking those who stay overnight to contribute slightly more, Measure I provides a responsible, balanced way to help preserve the services that make Eureka a safe, welcoming, and vibrant community.

Please join community members in voting YES on Measure I to protect essential City services and invest in Eureka's future.

FORM OF STATEMENT TO BE FILED BY AUTHOR(S) OF ARGUMENTS

All arguments concerning measures filed pursuant to Division 9, Chapter 3 (beginning with § 9200) of the California Elections Code shall be accompanied by the following form statement to be signed by each proponent, and by each author, if different, of the argument:

The undersigned proponent(s) or author(s) of the primary argument in favor of ballot measure I at the General Election for the City of Eureka to be held on November 3, 2026 hereby state that the argument is true and correct to the best of (his/her/their) knowledge and belief.

Sign Name	Print Name	Date
Scott Bauer	Scott Bauer	7/24/26
	Leslie Castellano	7/28/26
	Heidi Benzonelli	7/30/26
	Kati E. Moulton	7/31/26

All authors must print name and sign this form, the argument, and the rebuttal argument (EC 9600, 9283, and 9285).